

JEFFERSON CAPITAL SYSTEMS, LLC VS. PATRICK

CASE NUMBER: 26CVG-00566

Tentative Ruling on Motion to Compel Arbitration: Defendant Shawn A. Patrick moves to compel arbitration on the Complaint filed by Plaintiff Jefferson Capital Systems, LLC. There is no proof of service indicating the motion was served on Plaintiff and no Opposition has been filed. Without notice to Plaintiff, the motion is **DENIED** without prejudice. Defendant did not provide a proposed Order as required by Local Rule of Court 5.17(D). Defendant is to prepare the Order.

IN RE: KINSELLA

CASE NUMBER: 26CV-0211215

Tentative Ruling on Petition for Change of Name: Petitioner Vera Anne Kinsella aka Megan Anne McAllister seeks to change her name to Megan Anne McAllister. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

KUHN, ET AL. VS. DIGNITY HEALTH, ET AL.

CASE NUMBER: 23CV-0203118

Tentative Ruling on Applications to Appear Pro Hac Vice: Andrew G. Jackson and Daniel I.A. Smulien, attorneys who are licensed and reside in Minnesota and New York, respectively, seek admission pro hac vice in order to represent Defendant Medtronic, Inc. in this matter. California Rule of Court, Rule 9.40 provides the procedural requirements for a pro hac vice application and requires a verified application with the following information:

- (1) the applicant's residence and office address;
- (2) the courts to which the applicant has been admitted to practice and the dates of admission;
- (3) that the applicant is a member in good standing in those courts;
- (4) that the applicant is not currently suspended or disbarred in any court;
- (5) the title of court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and
- (6) the name, address, and telephone number of the active member of the State Bar of California who is attorney of record.

CRC 9.40(d).

Rule 9.40(c)(1) requires service of the application on all parties that have appeared and on the State Bar. The State Bar also requires payment of a fee. The notice requirements of CCP § 1005 apply and proof of service in accordance with CCP § 1013a is required.

The Applications are verified and contain all the information required by Rule 9.40(d). The Court finds that the Applications have been properly noticed and that the fee was paid to the State Bar for each applicant. The Applications are **GRANTED** and the Court will execute the proposed Orders.

IN RE: LANE

CASE NUMBER: 26CV-0211208

Tentative Ruling on Petition for Change of Name: Petitioner seeks to change the last name of her minor daughter. When a petition to change the name of a minor is brought by one parent only, the non-petitioning parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4). Additionally, proof of publication is required before the Court can consider granting